

Archival Source Packet

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Chapter 7.40 - PROHIBITED ACTIVITIES

Part 1 - MISCELLANEOUS PROHIBITED ACTIVITIES

7.40.010 - Public nuisance.

A.

No owner/guardian or person with a right to control the animal may allow the animal to commit any of the following acts:

1.

Defecate or urinate on private property other than the private property of the owner/guardian or the person with a right to control the animal.

2.

Defecate on public property without immediately removing the excrement to a proper receptacle.

3.

Obstruct the reasonable and comfortable use of public or private property by chasing vehicles, or molesting passersby.

4.

Habitually disturb the peace and quietude of any neighborhood or person, by howling, barking, crying, baying, or making any other noise.

B.

No owner/guardian or person with a right to control an animal may keep, use, or maintain any animal in violation of the proper and adequate care requirements under Part 1 of Chapter 7.20 .

C.

Any violation of this section is hereby declared to be a public nuisance.

D.

An animal services officer may seize and impound any animal causing a public nuisance.

E.

Any private person may maintain an action under Civil Code Section 3493, as may be amended, for compliance with the requirements of this section.

(Ord. 28079.)

7.40.020 - Maximum number of dogs, cats, or litters.

A.

It is unlawful for any person to maintain, at any dwelling unit, more than any of the following combination of cats and dogs:

Zero (0) adult dogs and five (5) adult cats; or

One (1) adult dog and four (4) adult cats; or

Two (2) adult dogs and three (3) adult cats; or

Three (3) adult dogs and two (2) adult cats.

B.

Any person that maintains a dog or cat and resides at a dwelling unit with more than the permissible number of dogs and cats is in violation of subsection A. of this section.

C.

A female dog or cat is rebuttably presumed unaltered unless either the owner/guardian or person with a right to control the dog or cat provides evidence of spaying or neutering, provides written certification from a licensed veterinarian that an animal cannot be spayed or neutered for health reasons, or is incapable of breeding.

D.

No person may allow the parturition and rearing of more than one (1) litter from all dogs and cats on any premises, including a dwelling unit, in any consecutive twelve-month period except under the following circumstances:

1.

A premise maintained by a veterinarian licensed by the State of California for the practice of veterinary medicine;

2.

A private kennel, commercial kennel, pet shop, animal menagerie, or animal shelter in possession of a valid permit from the administrator; or

3.

A premise maintained by an animal rescuer with a valid registration pursuant to Section 7.60.300 for that location.

(Ord. 28079.)

7.40.030 - Animals running at large.

It is unlawful for the animal owner/guardian or person with a right to control any animal to permit the animal to stray or run at large upon any public street or other public place, or upon any private place or property or common area of any planned development, cluster, townhouse, or condominium project without the consent of the owner or person in control thereof.

(Ord. 28079.)

7.40.040 - Restraint of dogs.

A.

The dog owner/guardian or person with a right to control a dog must keep the dog confined to his or her premises or keep the dog confined behind a fence of sufficient height and construction to safely contain the dog.

B.

The dog owner/guardian or person with a right to control a dog must keep the dog under direct physical restraint by means of a leash not to exceed six feet in length when the dog is on any public street, public sidewalk, other public place, event on public property, or at any private place or property or common area of any planned development cluster, townhouse, or on any condominium project without the consent of the owner or person in control thereof. An exception for a leash of up to twenty feet in length may be used when in a public park or public open space if the owner/guardian or person with a right to control the dog can exercise direct physical restraint of the dog such that the dog would be unable to make physical contact with another person or with an animal without the consent of that person or the consent of the owner/guardian or person with the right to control the other animal. This exception does not apply to a dog on a public trail. A dog on a public trail must be maintained on a leash not to exceed six feet; and both the owner/guardian and his or her dog must keep to the right of the trail centerline to the extent the centerline is marked.

C.

The restraint requirements specified in Subsections A. and B. do not apply to:

1.

Service dogs while such dogs are performing their duties;

2.

Dogs assisting either their owner/guardian/handler in legal hunting or in the herding of livestock;

3.

Dogs assisting a peace officer engaged in law enforcement activities;

4.

Dogs being trained for any of the above purposes on private land with permission of the landowner, as long as such dogs are under direct control of either the dog owner/guardian or person with a right to control the dogs to assure that the dogs do not violate any other provisions of law;

5.

Dogs subject to regulation as potentially dangerous, dangerous, or vicious dogs under Chapter 7.30 of this Title;

6.

Dogs participating in field or obedience trials or exhibitions located on a public place and approved by the city; or

7.

Dogs within a posted off-leash area located in any city owned land, as established by resolution of the city council, provided however, that nothing herein relieves either the dog owner/guardian or person with a right to control such dog from the responsibility to maintain proper control over the dog.

(Ords. 28079, 28903.)

7.40.050 - Dogs in posted off-leash areas.

A.

It is unlawful for any dog owner/guardian or person with a right to control a dog to permit the dog to be unrestrained on a posted off-leash area in violation of this section.

B.

Both the dog owner/guardian and person with a right to control a dog in a posted off-leash area must comply with all of the following conditions:

1.

No dog may be in a posted off-leash area except when in the charge, care, custody, or control of a person at least thirteen (13) years old.

2.

No animals other than dogs may be in any posted off-leash area.

3.

Dogs are only permitted in the posted off-leash area during posted hours of operation.

4.

No person may have more than two (2) dogs in a posted off-leash area at any one (1) time.

5.

Any dog in a posted off-leash area must be at least four (4) months of age, vaccinated for rabies, and currently licensed by the city or other jurisdictions. All persons entering the posted off-leash area are responsible for ensuring that their dog is not sick, in heat, injured, less than four (4) months of age, or displaying aggressive behavior toward other dogs or humans in the posted off-leash area.

6.

Any person having charge, care, custody, or control of a dog in a posted off-leash area must:

a.

Carry at all times a suitable container or other suitable instrument for the removal and disposal of dog feces;

b.

Promptly remove and properly dispose of any waste deposited by the dog;

c.

Quiet or remove the dog if it disrupts or disturbs the reasonable and comfortable use of the area;

d.

Have in his or her possession a leash for such dog that must be worn by the dog, and physically held by the owner/guardian, at all times the dog is not in the posted off-leash area; and

e.

Comply with all other applicable state and local laws, including without limitation those contained in this title that govern the health, safety, and maintenance of dogs.

C.

Compliance with this section does not relieve any person of liability for damages arising out of his or her use of a posted off-leash area.

(Ord. 28079.)

7.40.060 - Bites by dangerous animals - Civil damages.

A.

It is unlawful for any owner/guardian of a dangerous animal or person with a right to control a dangerous animal to allow or permit such animal to bite any person or animal that is lawfully on either private or public property.

B.

For the purpose of this section, a bite is any cut, laceration, tear, bruise, abrasion, or injury inflicted in or on the epidermis of a person or animal, whether or not that bite is considered a rabies risk by the State of California Health Department.

C.

A civil action for damages against the owner/guardian of a dangerous animal or person with a right to control a dangerous animal which bites any person or animal on either private or public property may be instituted by the human victim of such bite. Damages may include actual damages, costs, attorneys' fees, and a civil penalty of five thousand dollars (\$5,000.00) in addition thereto. The court also may award punitive damages in a proper case. Nothing in this provision limits any other right or remedy otherwise available in law or equity to any party, nor limits the city's right to enforcement under Chapter 1.08 of this Code.

D.

In the case of a bite by a dog, the court, in determining punitive damages, may consider whether the dog was or should have been licensed and properly maintained as a potentially dangerous, dangerous, or vicious dog pursuant to Chapter 7.30 of this title.

E.

This section does not apply to dog bites inflicted by dogs owned or maintained by the City of San José Police Department while such dogs are being used for law enforcement purposes.

(Ord. 28079.)

7.40.070 - Animal bites - Quarantine, violations, and examinations.

A.

Any person having knowledge that an animal is known to have or is believed to have bitten any person must immediately report the basis for such knowledge or belief to the Administrator.

B.

On receipt of such report, an animal services officer may seize and quarantine such animal for a period of fourteen (14) days or such other period as may be prescribed by state law. The animal services officer may order either the owner/guardian or person with a right to control the animal to quarantine the animal on the premises of the owner/guardian.

C.

No person may fail, refuse, or neglect to quarantine any animal as ordered by the animal services officer, or refuse to allow the animal services officer to inspect any premises where the animal is kept. No animal may be removed or released from the quarantine location during the quarantine period without written permission of the animal services officer.

D.

The administrator may charge a fee as set forth in the schedule of fees adopted by resolution of the city council, for the costs to quarantine the animal and to inspect the quarantine of an animal. Any fee charged must be paid by the owner/guardian or person with a right to control the animal. Such a fee does not include the cost incurred by the city to board, feed, and otherwise care for a quarantined animal.

E.

The head of any animal that dies or is destroyed while under quarantine must be submitted to the laboratory of the Santa Clara County Health Department for rabies examination.

(Ord. 28079.)

7.40.080 - Abandoned animals.

It is unlawful for the owner/guardian of an animal or person with a right to control the animal to abandon the animal in the city.

(Ord. 28079.)

7.40.090 - Neglect of animals in vehicles.

A.

It is unlawful for any person, other than an individual then actually in the process of working a dog or other animal for ranching or law enforcement purposes, to transport or carry the animal in a motor vehicle on any public highway or public roadway, unless the animal is safely enclosed inside the passenger area of the vehicle or by means of a container, cage, or other device which will prevent the animal from falling from, jumping from, or being thrown from the motor vehicle.

B.

It is unlawful for any person to leave any animal in a motor vehicle without adequate ventilation or in such a manner as to subject the animal to extreme temperatures which may adversely affect the health or well-being of the animal.

(Ord. 28079.)

7.40.100 - Animals in city buildings.

It is unlawful for any person to bring or allow an animal to remain in city-owned or city-managed buildings other than a building used for the purpose of care, detention, control, or treatment of animals or a building used for training classes, shows, or exhibitions, except persons with a disability assisted by a service dog, peace officers with a police dog, or persons authorized by the city manager.

(Ord. 28079.)

7.40.110 - Poisoning and abusing domestic animals.

A.

It is unlawful for any person to willfully administer poison to any domestic animal or to willfully place, expose or leave poisonous or harmful substances of any kind in any place with intent to injure or kill any domestic animal.

B.

It is unlawful for any person to maliciously kill, maim, wound, mutilate, torment, torture or physically abuse any animal.

(Ord. 28079.)

7.40.120 - Ban on feeding wild animals.

A.

It is unlawful for any person to feed or in any manner provide an attractant to a wild animal.

B.

No person may leave, store, or maintain any attractant in a location and manner accessible to any wild animal.

C.

The prohibitions in subsections A. and B. do not apply to:

1.

Any person who is the legal owner/guardian of the wild animal and the wild animal is kept under a valid license or permit issued by the State Department of Fish and Game, and in compliance with all applicable laws.

2.

Any person who feeds or provides an attractant to a trapped, injured, or unweaned wild animal between the time that the agency charged with animal control or its designated agent is notified of the wild animal and the wild animal is picked up by said agency.

3.

A wildlife rehabilitator.

4.

Any person who is using an attractant to trap an animal in a legally authorized or permitted manner.

5.

Any person with a bird feeder provided the feeders are suspended on a cable or other device to make them inaccessible to wild animals and the area below the feeders are kept free from the accumulation of seed debris.

(Ord. 28079.)

7.40.130 - Animal traps.

A.

It is unlawful for any person to use any of the following animal traps within the City limits of San José:

1.

Leg-hold steel-jawed traps;

2.

Steel-jawed traps;

3.

Leg-hold traps; and

4.

Saw-toothed or spiked-jaw traps.

B.

Any person using an animal trap that is not prohibited under Subsection A. must:

1.

Check the trap every twenty-four (24) hours;

2.

Maintain the trap in proper working condition;

3.

Remove, release, or transfer the animal from the trap within twenty-four (24) hours after the animal enters the trap;

4.

Cover or move the trap and the animal so that is not directly exposed to the elements including, but not limited to, the sun, rain, cold, or other conditions that may be detrimental to the animal's health; and

5.

Euthanize and dispose of the animal in accordance with the law.

C.

Any person that uses a trap as part of a trap, spay or neuter and release program for cats is exempt from complying with Subsection B.3. if (1) confinement for more than twenty-four (24) hours is for the purpose of spaying or neutering the cats and the cats are released as soon as medically practical and (2) the cats receive reasonably adequate water, food, and shelter pursuant to Sections 7.20.020 , 7.20.030 , and 7.20.040 .

(Ord. 28079.)

7.40.140 - Trapping and snaring wild birds prohibited.

It is unlawful for any person to snare or trap, or set any device to trap or snare any wild birds, except such birds as are destructive to fruit, provided that the person first obtains any required permit(s).

(Ord. 28079.)